

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Probate Notes

2025PRLE039563: IN THE MATTER OF AZIN EFTEKHARI

06/23/2026 in Department J6

Amended Petition for Account and Report

On 10/13/25, Petitioner filed an I&A allegedly showing an estate valued at \$1,080,000. The Court notes that the RP located at 17919 Califa St., Encino, was not appraised by a probate referee as required.

At the hearings on 1/27/26 and 4/7/26, the Court ordered the conservator to serve and file statutory accountings for the period 3/28/25 through 10/17/25 and 10/18/25 through 1/27/26. On 6/16/26, the conservator filed two amended accountings.

The heading of the first amended account says the period is for **3/28/25 – 10/17/25**. But the attached Summary of Account (GC-400) states the account period as “**10/17/25 through 3/20/26**.” The summary of account contains the same amounts as in the original summary filed on 3/30/26.

The first amended account summary shows **\$30,383.12** in cash on hand at beginning but Exh. 2 that follows shows **\$66,344.14** as the cash on hand at beginning. There is no schedule for disbursements for this account period despite the summary showing \$7,618.33 in disbursements. (Prob. Code, § 1062, subd. (b).) There is still no schedule of receipts, gains or losses. (§ 1061.) There is no itemized list of property on hand at ending. (§ 1062, subd. (f).)

The second amended account for the period 10/18/25 – 1/27/26 has no summary of account. (§ 1061, subd. (a).) There is no itemized list of property on hand at beginning. (§ 1062, subd. (f).) There is no schedule of receipts, gains or losses. (§ 1061.)

The accountings do not account for the real property asset. What has happened to the Califa property?

The Premier America account, if it holds assets belonging to the conservatorship estate, is not titled in the name of the estate. Instead, the title is held in the name of the conservator with the conservatee noted as a joint owner. A conservator must not commingle his own property with the conservatorship property. (Cal. Rules of Court, rule 7.1059(b)(6).) He must hold title to accounts with financial institutions reflecting the conservatorship. (Rule 7.1059(b)(7).)

The Premier bank statements show a withdrawal of \$17,576.70 on 6/4/25.
Explanation?

The Premier bank statements show deposits and withdrawals that do not appear on the Schedule C provided with the second account. If this account belongs to the estate, all receipts and disbursements from the account must be included in the accounting.

The petition does not include a report that complies with Probate Code section 1064.

The Court again intends to order the conservator to file statutorily compliant accountings and a report that addresses the Court's issues.